

Sole Source Justification (SSJ)

Procurements for Certain Commercial Products and Commercial Services exceeding the Simplified Acquisition Threshold (> \$250,000) pursuant to FAR Subpart 13.5, including Brand Name

SSJ No.:

Date: 18 February 2025

PR Number: _____

This sole source justification is provided in accordance with FAR 13.5 Simplified Procedures for Certain Commercial Products and Commercial Services and specifically under FAR 13.501 Special Documentation Requirements, where acquisitions conducted under Simplified Acquisition Procedures are exempt from the requirements of FAR Part 6 but still require a justification using the format of FAR 6.303-1. As provided under FAR 13.501, this justification is modified to reflect that the procedures under FAR subpart 13.5 were used in accordance with 41 U.S.C. 1903 – Special Emergency Procurement Authority.

1. Agency and Contracting Activity.

The Federal Emergency Agency (FEMA), Joint Field Office (JFO), 2012 Capital Circle SE, Tallahassee, 32301. Logistics Direct Housing in support of **DR-4828-FL** (Hurricane Helene) and **DR-4834-FL** (Hurricane Milton)

2. Nature and/or description of the action being approved.

This Single Source Justification (SSJ) form provides the rationale supporting a sole source contract action to **MHC Whispering Pines Largo, L.L.C., dba as Whispering Pines MHP in Largo, FL**, to lease pads /lots from this Commercial Park required to place temporary housing units for Applicants requesting assistance as a result of Hurricanes Helene and Milton. This is just one of the contracts necessary to supply the hundres of housing units required at this time. These services must be provide as close as possible to their original site, and are essential to timely and effectively support and aid disaster Survivors.

Nature of action: FEMA intends to Award a Sole Source Contract for the time necessary for the Applicants to renovate their damaged dwelling or find an alternate housing solution. Per the Stafford Act, the length of the Direct Housing Assistance Program is 18 months from the Presidential Disaster Declaration (9/28/2024 for Hurricane Helene, and 10/11/2024 for Hurricane Milton), pending extensions determined by US Congress.

3. Description of Supplies /Services.

This request is for the **monthly lease of five (5) lots / pads** in establishments that typically host manufactured/modular homes and recreational vehicles (RVs), known at FEMA as **Commercial Parks**, required to place Travel Trailers (TTs) and/or Mobile Home Units (MHU), collectively called TTHUs (Temporary Transportable Housing Units). Thes lots offer utilities (electricity, water and sewer), and the Park usually offers laundry, showers and other optional amenities. The lots vary in size, but must be large enough to safely accomodate one of the TTHUs, ranging from 8 x 24' (small TT) to 14' x 75' (3 bedroom

MHU with embedded fire extinguishing system), steps and/or accessible ramps, and surrounding yards.

- (a) Name and address of the contractor: **Whispering Pines Mobile Home Park, MHC Whispering Pines Largo, L.L.C., at 7501 142nd Ave N., Largo, FL 33771 – Pinellas County**
- (b) Contract type: **Firm Fixed Price.**
- (c) Estimated total value (including options). The contract is comprised of a base Period of Performance (PoP) of three (3) months, and five extensions of the same length each. The estimated value is [REDACTED]. It is based on information provided by the Park owner as well as a pad lease market research used in compiling the Independent Government Cost Estimate (IGCE). See table below.

<i>Period</i>	<i>Length (months)</i>	<i>Monthly (\$)</i>	<i>Total (\$)</i>
Base	3	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]

- (d) Type of funding: Disaster Relief Funds for 4828DR-FL and 4834DR-FL
- (e) Year of funding: FY2025 and FY2026.
- (f) Solicitation number: TBD

4. Identification of the authority.

This action is being taken in accordance with FAR 13.5 Simplified Procedures for Certain Commercial Products and Commercial Services. As provided under FAR 13.501, this justification is modified to reflect that the procedures under FAR subpart 13.5 were used in accordance with 41 U.S.C. 1903 – Special Emergency Procurement Authority.

The statutory authority permitting other than full and open competition is 41 U.S.C. 3304(a)(2) pursuant to **FAR 6.302-1, Only one responsible source and no other supplies or services will satisfy agency requirements.**

The length of this SSJ will be for 18 months from the date of the Presidential Disaster Declaration, in accordance with **HSAR 3006.302-1(b)(4)** and the DHS J&A Guide.

5. Demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited.

There are three types of sites required to accommodate Temporary Housing for disaster survivors:

- a) *Private* – usually the single-family lot where the dwelling unit is located is conditions permit, or an alternate similar location. Minimum cost, most convenient for the Applicant.
- b) *Commercial Parks* – existing establishments typically hosting manufactured/modular homes and recreational vehicles (RVs) for short, seasonal, or longterm periods. Higher cost, convenient if safe, sanitary, and close to the Applicant's original community. Parks range from a few lots to no more than a few hundred lots (e.g. 20 to 200), and are used mostly for survivors whose rental apartments have been severely damaged, or by homeowners whose lots are not spacious enough or other conditions (debris, sanitation, access, etc.) prevent the installation of a TTHU.
- c) *Group Sites* – FEMA leases land and has contractor build the infrastructure from scratch. The site must be mitigated, i.e. returned to its pristine condition at the end of the housing program. This alternative is costly and time consuming, being a last resort in the exhaustion of the previous options.

i. Geographical Constraints. Commercial Parks are used for Applicants whose private lot cannot hold a TTHU. The Park must be as close as possible to the Applicant's original residence to minimize disruption to their daily life (school, work, supporting community). Therefore, FEMA must contract with existing viable parks in any given area.

ii. Feasibility Constraints: Viable parks are those out of a Special Flood Hazard Area (SFHA) and that comply with all applicable regulations (local, state and federal). These Parks must be in safe and sanitary conditions, provide utilities, and have to register with the federal General Service Administration System for Award Management (SAM, sam.gov). Resources are limited in any given area.

iii. Capacity Constraints. Multiple parks will be required to house all survivors in a specific area. Therefore multiple contracts must be in place, each one being need to provide the number of require TTHU lots. If demand is higher than supply, no viable park can be left out.

MHC Whispering Pines Largo, L.L.C. dba Whispering Pines Mobile Home Park, the intended contractor, currently has five (5) feasible lots for Mobile Home Units (MHUs), and those are required for the survivors of **Largo in Pinellas County, FL**. Whispering Pines will be one of the many Single Sources contracted for this purpose in all Counties affected by the

storms. It is the first park of a series. If this SSJ is not approved it will reduce the inventory of pads in that region and unduly delay the housing of survivors.

6. Description of efforts made to ensure that offers are solicited from as many potential sources as is practicable.

Virtually all potential Commercial Parks are researched and identified via the Internet and later visited for due diligence and a site inspection in any given area. A site visit report is prepared and reviewed for viability as described in 5 (iii) above. Advertisement serves no purpose, as there is only a very limited pool of regional contenders fulfilling these requirements. A SAM.gov notice will be publicized of the sole source justification in an attempt to notify potential contractors of future support when this contract ends.

7. Determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

A Market Research for Pad Leases has been conducted by the Contracting Officer Representative (CORs) to define the average cost of a TTHU lot in the state. The Contracting Officer will review prices from similar contracts from previous disasters that were determined fair and reasonable based on the competitive process.

8. Description of market research.

Phone calls were placed to ten (10) potential vendors in the state on 10/25/2024. The result is enclosed in the Contract Package. The average cost of Commercial Park lots was found to be [REDACTED] including utilities.

9. Any other facts supporting the justification.

None

10. A listing of the sources, if any that expressed, in writing, an interest in the acquisition.

None

11. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for supplies or services required.

None

12. DHS/FEMA intends to post the requirement

Pursuant to FAR 13.501(a)(1)(iii) and 6.305(a) or for brand name FAR 13.501(a)(1)(iv) and 5.102(a)(6).

13. Technical/Requirements Personnel Certification.

I certify this requirement meets the Government's minimum need and that the supporting data, which forms a basis for this justification, is complete and accurate.



Technical Representative/COR

Date

14. Contracting Officer Certification and Approval*

Contracting Officer: Not exceeding \$750K

Date

**Note: In accordance with FAR 13.501(a)(2)(i), for contracts exceeding \$250,000 but not exceeding \$750,000, the contracting officer's certification that the justification is accurate and complete to the best of the ordering activity contracting officer's knowledge and belief will serve as approval.*

15. Approval:

Competition Advocate
Over \$750,000 but not exceeding \$15 million

Date

HCA:
Over \$15 million but not exceeding \$75 million

Date

HCA approval in addition to that of the Component Competition Advocate is not necessary if the Component Competition Advocate meets the criteria at FAR 6.304(a)(3)(ii).

Chief Procurement Officer (CPO)
Over \$75 million

Date